

1 ENGROSSED HOUSE
2 BILL NO. 4032

By: Caldwell (Trey) and Kane of
the House

3 and

4 Hall and Haste of the
5 Senate

6
7 An Act relating to mining; amending 45 O.S. 2021,
8 Section 931, which relates to operator's fees;
9 modifying certain fee; establishing minimum annual
10 fee amount; providing an effective date; and
11 declaring an emergency.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 45 O.S. 2021, Section 931, is
14 amended to read as follows:

15 Section 931. A. All operators of coal mining operations shall
16 pay to the Department of Mines a fee of seven and one-half cents
17 (\$0.075) per ton of coal produced.

18 B. All operators of noncoal mining operations shall pay to the
19 Department of Mines a fee of ~~one and one-fourth cents (\$0.0125)~~ one
20 and one-half cents (\$0.0150) per ton of mineral produced. For the
21 purposes of this section, "mineral" shall be defined as provided in
22 paragraph 4 of Section 723 of this title.

1 C. The fees imposed by this section shall be paid no later than
2 thirty (30) days after the end of each calendar quarter beginning
3 the first calendar quarter after June 30, 1982.

4 D. The Department shall develop and promulgate a report form,
5 which shall be as similar as possible to the form required of
6 operators by federal law, and which shall state the amount of coal
7 or mineral produced during the calendar quarter, the method of coal
8 or mineral removal, and the type of coal or mineral. The operator
9 shall swear to the accuracy of the report before a notary public,
10 who shall duly notarize the report.

11 E. All fees collected by the Department of Mines pursuant to
12 this section shall be deposited with the State Treasurer, who shall
13 credit one cent (\$0.01) per ton of fees collected on coal produced
14 on or after July 1, 1988, and one-tenth of one cent (\$0.001) per ton
15 of fees collected on minerals produced on or after July 1, 1988, to
16 the Oklahoma Miner Training Institute Revolving Fund, with the
17 balance of the fees collected to be deposited in the Department of
18 Mines Revolving Fund.

19 F. Notwithstanding the provisions of subsections A and B of
20 this section, each operator subject to the fees imposed by this
21 section shall pay a minimum annual fee of Five Dollars (\$5.00). If
22 the total amount of fees calculated pursuant to subsections A and B
23 of this section for a calendar year is less than Five Dollars
24

1 (\$5.00), the operator shall remit an amount sufficient to meet the
2 minimum annual fee requirement.

3 SECTION 2. This act shall become effective July 1, 2026.

4 SECTION 3. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

8 Passed the House of Representatives the 14th day of April, 2026.

9

10

Presiding Officer of the House
of Representatives

12

13 Passed the Senate the ____ day of _____, 2026.

14

15

Presiding Officer of the Senate

16

17

18

19

20

21

22

23

24